

456 Bridge Road,
Cobblebank Victoria, 3338

Complaints and Grievances Policy

Exported on 30 Jun 2026

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Document	Complaints and Grievances Policy
Document Type	Policy
Owner	Principal
Approval Authority	Governing Authority
Version	1.0
Status	APPROVED
Approval Date	19 Jun 2026
Review Cycle	2 years
Next Review	19 Jun 2028

1. Purpose

The Complaints and Grievances Policy establishes Rosewood College's commitment to receiving, managing and resolving complaints and grievances in a fair, respectful, timely and child-safe manner.

This policy supports the school's duty of care, child safety obligations, parent and guardian engagement, student wellbeing, staff accountability and continuous improvement.

The policy also supports a child-safe culture by ensuring students and families can raise concerns, including child safety concerns, in ways that are accessible, culturally safe, taken seriously and responded to promptly.

Rosewood College recognises that complaints and grievances can identify risks, misunderstandings, unmet needs, procedural concerns or opportunities to improve College operations.

This policy reflects Rosewood College's identity as an independent school grounded in the Catholic faith and moral tradition, recognising the dignity of each person and the responsibility to act with justice, charity, honesty and care.

2. Scope

This policy applies to:

- the Governing Authority
- the Principal
- all staff
- students
- parents and guardians
- volunteers
- contractors
- external providers
- visitors

- other members of the school community, where relevant

This policy applies to complaints and grievances relating to Rosewood College, including concerns about:

- student care, safety or welfare
- child safety
- student learning or participation
- staff conduct
- student behaviour
- bullying, harassment or discrimination
- first aid, medical support or student wellbeing
- supervision
- excursions and offsite activities
- external providers
- privacy or records handling
- communication with the school
- College operations, procedures or decisions
- conduct of volunteers, contractors, external providers or visitors connected with school activities

This policy does not replace mandatory reporting, reportable conduct, child safety, emergency, privacy, employment, disciplinary or legal obligations. Where another procedure applies, that procedure must be followed in addition to this policy.

Complaints involving child safety must be managed as child safety matters first. They may also be managed as complaints under this policy, but complaint resolution must not delay immediate protective action, mandatory reporting, reportable conduct notification, police contact or other required escalation.

3. Legal and Regulatory Context

This policy supports Rosewood College's compliance with applicable Victorian school registration, duty of care, child safety, privacy, anti-discrimination and governance obligations. It must be read together with the College's Child Safety Policy, Child Safety Code of Conduct Policy, Mandatory Reporting Policy, Reportable Conduct Scheme Procedure, Privacy Policy and Records Management Policy. Where a complaint raises a child safety, mandatory reporting, reportable conduct, emergency, employment, privacy or legal issue, the relevant specific procedure must be followed.

4. Policy

4.1 Complaint Pathways and Contact Points

Complaints and grievances may be raised verbally or in writing. Students may raise a concern with the Principal, a teacher, a staff member they trust, a parent or guardian who then contacts the College, or another authorised person identified by the College.

Parents and guardians may raise concerns with the relevant teacher, the Principal or the College office, depending on the nature and seriousness of the concern.

Serious complaints, child safety concerns, reportable conduct concerns, safety risks and urgent wellbeing matters must be escalated immediately to the Principal or other authorised person.

Complaints about the Principal must be referred to the Chairman of the Governing Authority or another person authorised by the Governing Authority. Complaints about the Chairman of the Governing Authority must be referred to another authorised member of the Governing Authority or handled in accordance with the Governance Charter.

4.2 Commitment to Fair and Safe Complaint Handling

Rosewood College is committed to managing complaints and grievances in a way that is:

- respectful
- accessible
- child-focused
- timely
- procedurally fair
- confidential where appropriate
- responsive to safety and wellbeing risks
- consistent with privacy and records obligations
- directed towards resolution, accountability and improvement
- free of charge for complainants

Complaints and grievances must be taken seriously and must not be dismissed because they are informal, verbal, raised by a student, raised by a parent or guardian, or expressed as concern rather than a formal complaint.

4.3 Definition of Complaint

A complaint is an expression of dissatisfaction about Rosewood College, a school decision, action, omission, service, process, staff member, student, volunteer, contractor, external provider or other person connected with the school, where a response or resolution is expected.

A complaint may be made verbally or in writing.

A complaint may be made formally or informally.

4.4 Definition of Grievance

A grievance is a complaint or concern where the person raising the matter believes they have been personally affected by a decision, action, omission, conduct, process or unresolved concern.

A grievance may involve student welfare, family concerns, staff interaction, school decision-making, procedural fairness, communication, safety, privacy or another matter affecting a person's relationship with the school.

4.5 Complaints from Students

Rosewood College supports students to raise concerns and complaints in ways that are suitable to their age, maturity, communication needs and circumstances. Students may raise

concerns directly or through a trusted adult without fear of disadvantage. Support is provided where required to ensure students can communicate concerns effectively, including consideration of communication needs or reasonable adjustments.

Students may raise concerns with:

- the Principal
- a teacher
- a staff member they trust
- a parent or guardian who then contacts the school
- another authorised person identified by the school

A student who raises a complaint, or who is involved in a complaint, will continue to participate in learning and school activities unless a temporary change is necessary for safety, wellbeing, supervision, legal or child safety reasons.

Staff must respond to student complaints and concerns respectfully and must consider whether the matter involves safety, wellbeing, child safety, bullying, harassment, behaviour, staff conduct or another risk requiring immediate action.

4.6 Complaints from Parents, Guardians and Community Members

Parents, guardians and other members of the school community may raise complaints or grievances with Rosewood College.

The school encourages concerns to be raised early where this may assist resolution.

Parents and guardians must communicate respectfully and constructively with staff, and must not take action that compromises student safety, privacy, procedural fairness or the wellbeing of others.

4.7 Complaints Involving Child Safety

Complaints or concerns involving child safety must be prioritised and escalated immediately to the Principal or Governing Authority.

This includes complaints or concerns involving:

- child abuse or suspected child abuse
- grooming
- sexualised behaviour or sexual harassment
- serious peer-to-peer harm
- adult conduct towards a student
- family violence concern
- serious neglect
- failure to protect a student from serious risk
- inappropriate staff, volunteer, contractor, visitor or external provider conduct
- reportable conduct concern
- online child safety concern
- any matter suggesting that a student may be at risk of significant harm

Child safety reporting obligations are not displaced by this policy.

Staff who receive or become aware of a child safety concern must report it immediately through the College's child safety reporting pathway and must not wait for a written complaint. The immediate safety of the student must be assessed and protective action taken where required.

4.8 Procedural Fairness

Rosewood College will apply procedural fairness when managing complaints and grievances.

Procedural fairness requires that, where appropriate and subject to safety, child safety, legal and privacy considerations:

- the person raising the complaint is heard respectfully
- the person who is the subject of the complaint is informed of relevant concerns at an appropriate level of detail
- relevant information is considered before decisions are made
- decisions are made without bias
- conflicts of interest are identified and managed
- outcomes are communicated in a fair and appropriate way

Procedural fairness does not prevent the school from taking immediate protective action where required for student safety, child safety or wellbeing.

4.9 Confidentiality and Privacy

Complaints and grievances must be handled confidentially and in accordance with the Privacy Policy and Records Management Policy.

Information must be shared only with persons who need it for complaint handling, student safety, child safety, legal, governance, operational or wellbeing reasons.

The College will not disclose personal information about students, families, staff or other persons unless authorised or required.

Where a complaint involves another student, parents and guardians must not expect access to private information about that student, including disciplinary action or personal circumstances.

The College takes reasonable steps to ensure that a student, parent, guardian, staff member or other person is not disadvantaged for raising a genuine concern or participating in complaint handling.

4.10 No Victimisation or Retaliation

Rosewood College does not tolerate victimisation or retaliation against a person who raises a complaint, supports another person to raise a complaint, provides information, or participates in a complaint handling process.

Any allegation of retaliation must be taken seriously, recorded and assessed for student safety, child safety, staff conduct, behaviour management or complaint escalation.

4.11 Accessible Complaint Handling

Rosewood College takes reasonable steps to make complaint handling accessible to students, parents, guardians and members of the school community.

This may include:

- providing child-friendly explanations of complaint pathways
- ensuring complaint handling is culturally safe for Aboriginal students and families and respectful of diverse cultural and family contexts
- helping students understand how to raise concerns
- receiving complaints verbally or in writing
- providing support to students who need assistance to raise a concern
- offering reasonable assistance where language, literacy, disability or age affects a person's ability to raise a complaint
- considering communication needs
- allowing a support person where appropriate
- providing information in a way that is reasonably understandable
- supporting Aboriginal students and families to raise concerns safely and respectfully
- supporting students with disability or additional needs to raise concerns

4.12 Early Resolution

Where appropriate and safe, Rosewood College seeks to resolve complaints at the earliest suitable level.

Early resolution may involve:

- clarifying the concern
- providing information
- correcting a misunderstanding
- apologising where appropriate
- taking immediate practical action
- adjusting communication
- agreeing on next steps
- referring the matter to the appropriate staff member or procedure

Early resolution must not be used to minimise, avoid or delay response to serious complaints, child safety concerns, reportable conduct concerns, safety risks, privacy breaches, repeated issues or matters requiring formal review.

Where appropriate, the outcome communication must identify the issue considered, the process followed, the outcome or action to be taken, any limits on what can be disclosed, and any available internal review or escalation pathway.

4.13 Withdrawal of Complaints

A complainant may withdraw a complaint at any time. The College may still need to continue considering or acting on the matter where it raises student safety, child safety, legal, governance, staff conduct, repeated pattern or operational risk.

4.14 Joint or Repeated Complaints

Where multiple people raise substantially the same issue, the College may manage the concerns together where this is fair, efficient and does not compromise confidentiality, student safety or procedural fairness.

4.15 Formal Complaint Handling

Formal complaint handling is required where a complaint is serious, unresolved, repeated, complex, involves safety or child safety, involves staff conduct, requires investigation, requires procedural fairness, or cannot be resolved informally.

Formal complaint handling must be documented and must include:

- receipt of the complaint
- assessment of the concern
- allocation of responsibility
- consideration of immediate safety or wellbeing needs
- consideration of child safety and reporting obligations
- communication with relevant parties
- information gathering where required
- decision or outcome
- corrective action where required
- review or escalation options where appropriate
- records retained in approved systems

4.16 Internal Review and Escalation

A complainant may request internal review where they believe the complaint process was not followed, relevant information was not considered, the outcome was not reasonably open on the information available, or a conflict of interest affected the process. In response, the Principal, or another authorised person where the Principal has a conflict, determines the appropriate review pathway. Internal review does not prevent the College from taking immediate protective, child safety, legal, employment or operational action where required.

4.17 External Agencies and Referral

Where appropriate, complainants may be directed to relevant external agencies. This may include Victoria Police in an emergency or where a crime may have occurred, Child Protection for mandatory reporting concerns, the Social Services Regulator/Commission for Children and Young People for child safety or reportable conduct matters, the VRQA for school registration complaints, or other bodies relevant to the issue. The College may also be required to report matters externally. External referral or reporting does not prevent the College from taking immediate steps to protect students and manage risk.

4.18 Complaints About the Principal

A complaint about the Principal must be referred to the Chairman of the Governing Authority or another person authorised by the Governing Authority.

The Principal must not manage a complaint where they are the subject of the complaint or where there is an actual or perceived conflict of interest that cannot be managed.

4.19 Complaints About the Governing Authority

A complaint about a member of the Governing Authority must be referred to the Chairman of the Governing Authority, unless the complaint concerns theChairman.

A complaint about the Chairman of the Governing Authority must be referred to another authorised member of the Governing Authority or handled in accordance with the Governance Charter.

4.20 Anonymous Complaints

Rosewood College may consider anonymous complaints where sufficient information is provided to enable assessment or action.

The College may be limited in its ability to investigate or respond to an anonymous complaint, but must still consider whether the complaint raises a student safety, child safety, legal, operational or governance risk.

A person may request that their identity be treated confidentially. The College considers such requests, however confidentiality may be limited where information must be shared for safety, child safety, legal, procedural fairness, reporting or investigation reasons

4.21 Unreasonable Complainant Conduct

Rosewood College treats complainants respectfully, but may manage unreasonable conduct to protect students, staff and College operations.

Unreasonable conduct may include:

- abusive, threatening or aggressive communication
- repeated contact that is disproportionate to the issue
- refusal to engage with reasonable process
- repeated re-raising of matters already addressed without new information
- conduct that breaches privacy or procedural fairness
- direct contact with other students, parents or staff in a way that compromises safety or fairness

Any restriction on communication must be reasonable, proportionate and approved by the Principal or Governing Authority where appropriate. Any decision to limit communication should be reviewed periodically and should not prevent a person from raising new, serious or child safety concerns.

4.22 Records and Continuous Improvement

Rosewood College maintains records of complaints and grievances. Records may include the complaint received, date, parties involved, risk assessment, child safety or external reporting considerations, actions taken, communications, outcome, reasons where appropriate, corrective actions, review requests and closure date.

Complaint records must support:

- fair handling
- accountability
- student safety and wellbeing
- child safety reporting

- procedural fairness
- privacy and confidentiality
- communication with parties
- corrective action
- pattern review
- governance oversight
- evidence readiness

The College reviews complaint information to identify recurring concerns, systemic issues, unresolved risks and opportunities for improvement.

5. Implementation

The Governing Authority is responsible for approving this policy and maintaining oversight of complaint handling as part of the College's governance, child safety and duty of care arrangements.

The Principal is responsible for implementing this policy and ensuring that Rosewood College has practical arrangements for receiving, assessing, managing, recording, escalating and reviewing complaints and grievances.

The Principal must ensure that:

- this policy is communicated to staff
- complaint pathways are communicated to students, parents and guardians
- complaints and grievances are taken seriously
- child safety complaints are escalated through required pathways
- complaint records are maintained in approved systems
- privacy and confidentiality are managed
- conflicts of interest are identified and managed
- serious or systemic complaints are escalated to the Governing Authority where required
- complaints are reviewed to identify risk, corrective action and improvement opportunities

The Principal provides the Governing Authority with periodic or annual de-identified reporting on complaints trends, serious complaints, systemic issues and improvement actions, while maintaining privacy and confidentiality

Staff are responsible for:

- listening respectfully to concerns
- responding promptly where a matter is within their role
- escalating serious, unresolved or sensitive matters
- reporting child safety concerns immediately
- maintaining confidentiality
- creating records where required

- following the Complaints and Grievances Procedure

Students, parents, guardians and members of the school community are encouraged to raise concerns promptly and communicate respectfully during complaint handling.

6. Review

This policy must be reviewed at least every two years, or earlier if required.

This policy must also be reviewed when there is:

- a serious complaint or grievance indicating that complaint handling arrangements may be ineffective
- a child safety complaint or reportable conduct concern
- a pattern of repeated complaints
- a complaint involving procedural fairness, privacy, student safety or governance risk
- a change to the Complaints and Grievances Procedure
- a material change to child safety, duty of care, privacy, records management, behaviour management, staff conduct or governance requirements
- a change to legislation, Ministerial Orders, VRQA guidance or registration expectations
- a VRQA review, audit or registration process identifying a relevant issue
- a governance review indicating that this policy is unclear, incomplete or ineffective

The Principal is responsible for coordinating review of this policy.

Material amendments must be approved by the Governing Authority.

7. Related Documents

Related documents include:

- Complaints and Grievances Procedure
- Parent Code of Conduct Policy
- Privacy Policy
- Staff Code of Conduct